

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
PENY & CO., L.L.C.,

Plaintiff,

v.

PHILADELPHIA COMMUNITY SERVICES
HOUSING DEVELOPMENT FUND
CORPORATION; THE CITY OF NEW YORK,
ACTING THROUGH ITS DEPARTMENT OF
HOUSING PRESERVATION AND
DEVELOPMENT; THE CITY OF NEW YORK
ENVIRONMENTAL CONTROL BOARD; NEW
YORK STATE DEPARTMENT OF TAXATION
AND FINANCE; NEW YORK CITY
DEPARTMENT OF FINANCE; COMMISSIONER
OF THE NEW YORK CITY DEPARTMENT OF
TRANSPORTATION,Defendants.
----- X

Index No. 850388/2024

NOTICE OF SALE**Mortgaged Property:**22 East 130th Street (Parcel A, Lot 161)
20 East 130th Street (Parcel B, Lot 62)
2056 Madison Avenue (Parcel C, Lot 58)
New York, New York
Block 1754, Lots 161, 62, and 58

Pursuant to a Judgment of Foreclosure and Sale signed by the Honorable Francis A. Kahn, III, J.S.C. on January 16, 2026, and filed by the New York County Clerk's Office on March 9, 2026 (NYSCEF Doc. No. 105) (the "Judgment"), Christy M. Demelfi, Esq., the Referee, duly appointed in this action for such purpose, will sell in one parcel at public auction to be held at the New York County Courthouse, 60 Centre Street, New York, New York, on **June 2, 2026 at 2:15 p.m.** (which was adjourned from an original sale date of May 12, 2026 at 2:15 p.m.), the following premises as described by the Judgment:

(FOR INFORMATION ONLY: BLOCK 1754 LOT 161 – PARCEL A):

ALL that certain piece or parcel of land, together with any improvements thereon erected, situate, lying and being in the Borough of Manhattan, City, County, and State of New York, bounded and described as follows:

BEGINNING at a point on the southerly side of East 130th Street distant 126 feet 8 inches westerly from the corner formed by the

intersection of the westerly side of Madison Avenue with the southerly side of East 130th Street;

RUNNING THENCE southerly parallel with the westerly side of Madison Avenue with the southerly side of East 130th Street;

THENCE westerly along the center line of the block, 16 feet 10 inches;

THENCE northerly parallel with the westerly side of Madison Avenue and part of the distance through a party wall, 99 feet 11 inches to the southerly side of East 130th Street;

THENCE easterly along the southerly side of East 130th Street, 16 feet 10 inches to the point or place of BEGINNING.

(FOR INFORMATION ONLY: BLOCK 1754 LOT 62 – PARCEL B):

ALL that certain piece or parcel of land, together with any improvements thereon, situated lying and being in the Borough of Manhattan, City and State of New York, designated on the Tax Map of the City of New York for said Borough, as said Tax Map was on July 6, 1977, as Block 1754, Lot 62 known as 20 East 130th Street being more particularly bounded and described according to said map as follows:

BEGINNING at a point on the southerly side of East 130th Street distant 143 feet 4 inches westerly from the corner formed by the intersection of the southerly side of East 130th Street and the westerly side of Madison Avenue;

RUNNING THENCE southerly parallel with the westerly side of Madison Avenue and part of the distance through a party wall, 99 feet 11 inches;

THENCE westerly parallel with the southerly side of East 130th Street, 16 feet 10 inches;

THENCE northerly parallel with the westerly side of Madison Avenue and part of the distance through a party wall, 99 feet 11 inches to the southerly side of East 130th Street;

THENCE easterly along the southerly side of East 130th Street, 16 feet 10 inches to the point or place of BEGINNING.

**(FOR INFORMATION ONLY: BLOCK 1754 LOT 58 –
PARCEL C):**

ALL that certain piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in the Borough of Manhattan, City of New York and State of New York, bounded and described as follows:

BEGINNING at the corner formed by the intersection of the westerly side of Madison Avenue and the southerly side of East 130th Street;

RUNNING THENCE westerly along the southerly side of East 130th Street, 75.0 feet;

THENCE southerly parallel with the westerly side of Madison Avenue, 18.0 feet;

THENCE easterly parallel with the southerly side of East 130th Street and part of the distance through a party wall, 75.0 feet to the westerly side of Madison Avenue;

THENCE northerly along the westerly side of Madison Avenue, 18.0 feet to the point or place of BEGINNING.

The premises is known in the County of New York, State of New York, as Block 1754, Lots 161, 62, and 58, and shall be offered as a whole and sold off to the highest bidder under the following terms:

Subject to any facts that an inspection of the premises would disclose; any state of facts that an accurate survey of the premises would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record; any building and zoning ordinances of the municipality in which the premises is located and possible violations of same; any rights of any tenants or persons in possession of the premises; prior liens of record, if any, except those liens addressed in section 1354 of the Real Property Actions and Proceedings

Law; and any equity of redemption of the United States of America to redeem the premises within 120 days from the date of sale.

Subject also to every other term of said Judgment and the terms of sale.

As more particularly described in the Judgment, the amount due as per the Referee's Report is the sum of \$589,477.66 with interest, together with advances as provided for in the Note and Mortgage with interest, costs and disbursements of \$1,415.00, and attorney fees of \$20,000 with interest.

A copy of the terms of sale can be obtained from Mark A. Slama, Esq. or Amanda A. Meehan, Esq., c/o Windels Marx Lane & Mittendorf, LLP, 156 West 56th Street, 23rd Floor, New York, New York 10019, telephone (212) 237-1000, attorneys for Plaintiff.

Dated: May 11, 2026
New York, New York

WINDELS MARX LANE & MITTENDORF, LLP

By: /s/ Amanda A. Meehan
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Court-Appointed Referee